

CRIMINAL DOCKET

TITLE OF CASE	ATTORNEYS
THE UNITED STATES	For U. S. GEORGE E. Q. JOHNSON
vs.	United States Attorney
ALPHONSE CAPONE alias	
ALPHONSE BROWN alias	
AL CAPONE alias	
AL BROWN alias	For Defendant: Vio; Sec 1114
"SCAR FACE" BROWN alias	(A) and (B) of the Rev.
"SCAR FACE" CAPONE alias	Act of 1926 & Secs 146(A)
A. COSTA	and (b) of the Rev Act of
	1928 Sections 1265 and
	2146; Title 26, U.S. Code

ABSTRACT OF COSTS	AMOUNT	CASH RECEIVED AND DISBURSED			
		DATE	NAME	RECEIVED	DISBURSED
ABSTRACT OF COSTS	AMOUNT	1-5-39	Abraham Teitelbaum for Alphonse Capone	Costs - 7,596 34 Fine - 30,000 00	
		1-26-39	Colly Int Rev 323		37,596 34
Fine, #22852 K	50000.00	11-3-39	Abraham Teitelbaum for Alphonse Capone	29000 00	
	12.85	11-24-39	Colly Int. Rev. 172		20,000 00
Clerk,	626.08		See Case 22852 for credit		
Marshal,	5 86				
Attorney,	20 00				
Commissioner's Court,	83 10				
Witnesses, # 22852	6924.40				
	\$ 57692.29				

1931	PROCEEDINGS	CLERK'S FEES	
		PLAINTIFF	DEFENDANT
June 5	Filing Indictment To issue bench warrant & fix bond at \$50,000. and issued bench warrant Barnes J	5 00	
June 5	Filing Bond		1 00
June 5	Order approving bond in sum of \$50,000. Barnes J		
June 15	Filing Appearance Michael A. Ahern Atty		
June 16	Filing Appearance Leopold B. Melnick Associate Atty		
June 16	Plea of guilty entered and contd to June 30th -2 P.M. for disposition Wilkerson, J.		
June 29	Contd to July 30th for disposition on plea Wilkerson, J.		
July 2	Filing bench warrant retd executed		
July 30	Order consolidating #22852 with 23232		
July 30	Motion of deft for leave to withdraw plea of guilty and enter plea of not guilty. -entered and contd to July 31st		6 00

DATE 1931	PROCEEDINGS	CLERK'S FEES	
		PLAINTIFF	DEFENDANT
	2 P.M. Wilkerson J,		6 00
July 31	Leave to deft to withdraw plea of guilty and enter plea of not guilty and contd to Sept 8th to set for trial Wilkerson J		
Aug 1	Filing 3 praecipes-U.S. Atty & subpoenas issued		
Aug 5	Filing subpoena and ret'd executed Fee 86¢		
Aug 18	Filing request for certified copy of indictment & issued to M. J. Ahern Atty		22 70
Sent 4	Contd to Sept 10th - 10 A.M. to set for trial Wilkerson J		
Sent 10	For trial Oct 6th Wilkerson J		
Sent 25	Filing request for copies of Documentary evidence etc		
Sent 25	Motion to correct record by striking-Entering of plea of not guilty and motion for Bill of Particulars ent'd & contd to Sept. 29th 1931 Wilkerson J.		
Sent 29	Filing Demurrer - Ahern, Melnick & Fink Attys		
Sent 29	Motion to correct record overruled- Motion for leave to withdraw plea of not guilty and file demurrer sustained - Demurrer overruled and exception Plea of not guilty re-entered - Motion deft for Bill of Particulars heard and denied and exceptions - Bill of Exceptions 90 days Wilkerson J.		5 00
Oct 6	Plea of not guilty entered - Jury & Order instructing U.S. Marshal to keep jury intact and provide meals & lodgings for them Wilkerson J.		
Oct 7	On trial Wilkerson J		
	5 Gov't witnesses sworn	50	
Oct 8	On trial - 3 Gov't witnesses sworn Wilkerson J	30	
Oct 9	On trial- 10 Gov't witnesses sworn Wilkerson J	1 00	
Oct 10	On trial - 12 Gov't witnesses sworn Wilkerson J.	1 20	
Oct 12	On trial- 21 Gov't witnesses sworn Wilkerson J	2 10	
Oct 13	Evidence for Gov't concluded - Motion deft to direct verdict overruled and adjournment to Oct 14- 10 A.M. Wilkerson, J		
	5 Gov't witnesses sworn	50	
Oct 14	On trial - 8 deft witnesses sworn Wilkerson J,	80	
Oct 6	Filing subpoena duces tecum ret'd executed		
Oct 6	Filing (12) subpoenas duces tecum ret'd executed		
Oct 16	Filing (6) witness cards Fees \$13.00 18-30\$9.20-\$62.80 ✓		40 10

DATE	FILINGS-PROCEEDINGS	CLERK'S FEES		RE
		PLAINTIFF	DEFENDANT	
1931				
	\$12.70 and \$19.20	4010		
Oct 15	Evidence concluded - Motion to direct verdict over ruled - adjournment Oct 16th - 9:30 A.M. Wilkerson J.			
	2 Deft witnesses sworn	20		
Oct 16	On trial Arguments Wilkerson J			
Oct 17	Verdict of not guilty in indictment #22852			
	Guilty on counts 1-5-9-13- & 18 and not guilty on counts 2-3-4-6-7-8-10-11-12- 13 -14-15-16-17-19-20-21-22 in indictment #23232 - Motion in arrest of judgment contd to Oct 20th 10;A.M.			
	Wilkerson J			
Oct 19	Motion in arrest of Judgment contd to Oct 23rd 10 A.M.			
	Wilkerson J			
Oct 21	Filing subpoena ret'd exec			
Sep 30	Filing (2) Praecipes U.S. Atty			
" "	Filing subpoena ret'd execu			
Oct 1	Filing 27 Subpoenas ret'd execu			
Oct 2	" 8 " " "			
Oct 3	" 2 " " "			
Oct 5	" 3 Praecipes U.S. Atty			
" "	" 2 Subpoenas ret'd ^{unex} execu			
" "	" 3 " " ^{Execu}			
" 6	" Praecipe U.S. Atty			
" 7	" " " "			
" "	" Subpoena ret'd execu			
" 8	" 19 Subpoenas ret'd execu			
" "	" 6 Sub Duces Tecum ret'd execu			
" 9	" Praecipe U.S. Atty Subpoena ret'd unex			
Oct 10	" Praecipe U.S. Atty			
" 12	" " " "			
" "	" Subpoena ret'd executed			
" "	" 2 " " Unexecuted			
" 23	" 30 Witness cards \$5.00-2.50-\$200.40-			
	#200.40-205.40-2.90-2.10-3.00-19.50-205.40-			
	20.00-13.20-14.20-170.40-200.40-195.40-130.40-			
	4.20-92.70-92.70-215.40-195.40-215.40-170.40-			
	195.40-210.40-195.40-73.40-130.40-200.40-125.30			
	195.40-195.40-11.10-17.30-16.70-2.50-15.00 -	4030		

DATE 1931	FILINGS-PROCEEDINGS	CLERK'S FEES		AMOUNT REPORTED IN EMOLUMENT RETURNS
		PLAINTIFF	DEFENDANT	
			4030	
	\$18.70-14.70-220.40-205.40-138.60-195.40-195.40-			
	13.80-5.00 17.00 205.40-\$190.40-205.40-12.10-180.40-			
	\$195.40-22.70-190.40-203.70-9.80-13.40-11.30			
Oct 23	Filing Motion in Arrest of Judgment - Ahern & Fink Attys			
Oct 23	Arguments on motion in arrest of Judgment heard and contd to Oct 24th for disposition -Wilkerson J			
Oct 24	Filing Witness card Fee \$18.00			
Oct 24	Judgment and sentence on verdict and exception as per draft			
	Petition for appeal allowed -Bond \$250.00		5 00	
	Motion for supersedeas overruled and exception			
	Motion for bail overruled and exception -			
	Disposition on motion in arrest (in draft order)			
	Wilkerson J	5 00		
Oct 24	Issued commitment -Leavenworth Kas (10 years \$70,000.00 and costs)	50		
	Issued commitment Cook Co (1 year- \$70,000.00 and costs)	50		
Oct 24	Filing Assignment of Errors Ahern & Fink Attys			
" "	" Petition for Appeal Ahern & Fink Attys			
" "	" Citation			
" 30	" (2) witness cards Fees \$2.10 -4 7.50			
" "	" (30) subpoenas ret'd execu			
Nov 2	" Witness card Fee \$10.20			
" "	" Cost Bond On Appeal		100	
Oct 31	To amend record of proceedings relative to withdrawal of plea of not guilty etc (draft) Wilkerson J			
" 31	Filing praecipe For Transcript of Record -Fink & Ahern Attys			
Nov 9	Filing Statement of Proceedings of Sept 25th & 29th and Oct 24th 1931			
Nov 9	Filing Notice			
Nov 9	Order amending Judgment and sentence of Oct 24th			
	Order in re Motions to amend & directing 3 days notice thereof to defts counsel			
	Order allowing amendment of record of Sept 25th & 29th (3 drafts) Wilkerson J		52.30	

DATE 1931	FILINGS-PROCEEDINGS	CLERK'S FEES		R E
		PLAINTIFF	DEFENDANT	
	Nov. 9, 1931		52 30	
	Appeal \$5.00			
	Seal .50			
	Transcript 27.00			
	\$32.50			
	Paid 11-9-3			
	Michael J. Ahern Atty for deft			
	Nov. 10 Filing Praecipe for additional Transcript U.S. Atty			
	Nov 12 Filed Objection & Affidavit -Fink & Aherns Attys for deft			
	Nov. 16 Filing Notice - Fink and Ahern Attys			
	Nov. 16 Bill of Exceptions marked presented-Wilkerson, J			
	Nov 16 Filing (2) witness cards Fees \$4.60-11.30			
	Nov 18 Filing Petition -United States Marshal	5 00		
	Nov 18 Order authorizing expenditure of \$475.00 for special bailiffs (draft) Wilkerson, J			
	Nov 20 Motion to settle , allow and sign defts bill of exceptions, heard and taken under advisement , Wilkerson, J			
	Nov 16 Ordered that said orders of Nov 9, 1931 shall be considered as re-entered as of this date with said bill of exceptions as an additional basis for each of said orders (draft) Wilkerson, J			
	Nov 16 Bill of Exceptions approved and filed-Wilkerson, J			
	Nov 16 Filing Bill of Exceptions			
	Dec 1 Filing Notice -U.S. Atty			
	Dec 1 Objections to amendment to bill of exceptions except as hereinafter stated overruled-ordered that bill of exceptions show an exception by deft to the overruling of his demurrer and that part of objection numbered 4 covering the absence of such exceptions sustained -time extended for filing all bills of exceptions and amendments thereof to and including Feb 1, 1932 -deft al- lowed an exception to the overruling of his ob- jections and exceptions to the oral finding made a part of the record by the bill of exceptions and an exception to the inclusion thereof (draft) Wilkerson, J.		57 30	

DATE 1931	FILINGS-PROCEEDINGS	CLERK'S FEES		AMOUNT REPORTED IN EMOLUMENT RETURNS
		PLAINTIFF	DEFENDANT	
			57 30	
Dec 3	Filing additional praecipe for transcript of record -M.J.Ahern Atty			
Dec 3	Filing additiona assignments of error -Fink & Ahern Attys			
Dec 7	Filing (2) witness cards Fees \$5.80-6.60			
Dec 5	Order to have amendment of judgment made on face of record thereof (draft) Wilkerson,J			
Dec 7	Filing additional praecipe for transcript of record-Geo.E.Q.Johnson, U.S.Atty			
	Geo.E.Q.Johnson U.S.Atty (Grossman)			
	1 Record \$4.50			
	1 Seal .50			
	\$ 5.00 Dec 11, 1931			
Nov 25	Filing sub ret'd executed			
Dec 17	Filing witness card Fee \$5.80			
Dec 18	Filing witness card \$7.00			
Oct 1	Filing petition U.S.Atty-subpoena duces tecum issued (suppressed)			
Oct 2	Filing petition -U.S.Atty-subpoena duces tecum issued			
Oct 2	Petition for issuance of sub duces tecum, U.S. Atty- issued			
Sep 28	Mo sub duces tecum allowed (draft) suppressed (Barnes,J. Sub & cert copy issued			
Sep 28	Mo dub duces tecum allowed (draft) -Barnes, J sub & cert copy issued			
Sep 29	Mo sub duces tecum allowed(draft) Barnes, J subpoena duces tecum issued			
Sep 29	Mo subpoena duces tecum allowed (draft) Barnes, J sub & cert copy issued			
Oct 1	Mo sub duces tecum allowed (draft)-Wilkerson,J sub & cert copy issued			
Oct 2	Mo subpoena duces tecum allowed (draft)-Barnes,J sub & cert copy issued			
Oct 2	Mo sub duces tecum allowed (draft) -Barnes, J sub & cert copy issued			
Sep 26	Praecipes filed -U.S.Atty -subpoenas issued (8)			
Sep 28	Filing (9) praecipes-U.S.Atty-subpoenas issued			
Sep 29	Filing 8 praecipes -U.S,Atty-subpoenas issued		57 30	

DATE 1931	FILINGS PROCEEDINGS	CLERK'S FEES	
		PLAINTIFF	DEFENDANT
Sep 30	Filing (5) praecipes-U.S. Atty-subpoenas issued		57 30
Oct 1	Filing 3 praecipes -U.S. Atty-subpoenas issued		
Oct 2	Filing 6 praecipes -U.S. Atty -subpoenas issued		
Oct 3	Filing praecipe -U.S. Atty -subpoena issued		
Sep 28	Filing (2) petitions for issuance of subpoena		
1932	duces tecum		
Jan 26	Filing witness card Fee \$6.00		
Mar 17	Filing Petition -U.S. Atty		
Mar 17	Order allowing W.E. Bennett Special Agent in charge Bureau of Prohibition , or his agent to remove certain bonds from office of clerk as per draft Barnes, J		
May 3	Filing order vacating supersedeas		
May 3	Filing Mandate C.C. of Appeals-Judgment affirmed		
May 3	Issuing (2) cert copies of Mandate for Marshal		
May 3	Order mittimus issue , mandate of C.C. of Appeals affirming judgment having been filed this day Lindley, J		57 30
July 14	Filing mittimus retd ex. 1% on \$50,000.00		57 30
June 3	Filed com retd unexecuted (deft to Atlanta in lieu of Leavenworth)		57 30
1934			
Mar 20	Filed witness card -fee \$2.80		
1935			
Feb 2	Filed request for certified copy of docket entries showing pleas of guilty, issued same to Dwight H. Green U.S. Atty	65	
Feb 12	Filed request and issued certified copy of Indictment to U.S. Atty	68 13	
1936			
Jan 31	Order allowing U/S. Atty M.L. Igoe to withdraw original bonds of deft from the files of the Clerk of this Court for the purpose of making a photostat copy thereof for the use of the U.S. Treasury deft. Wilkerson, J	68 78	68 78
1937			68 78
June 2	Mo for leave to file petition and vacate sentence heard and advisement-petitioner to file supplementary Brief in 2 days Wilkerson, J		
Aug 1	Order that petition for vacation of sentence imposed on counts 13 and 18 of indictment No 23232 be filed as of May 28, 1937 the date on		

DATE 1937	FILINGS-PROCEEDINGS	CLERK'S FEES		AMOUNT REPORTED IN EMOLUMENT RETURNS
		PLAINTIFF	DEFENDANT	
	which it was presented . Further ordered that prayer of said petition is denied-(draft) Wilkerson, J			
Aug 12	Filed Memorandum Denying Petition to Vacate Misdemeanor Sentences Wilkerson			
Aug 18	Notice of Appeal -A.Teitelbaum Atty for Capone	5 00	Pd	
Aug 19	Filed Praecipe for Transcript of Record - A.Teitelbaum Atty for Capone			
Sep 3	Filed Praecipe for Additional Information-U.S. Atty			
Sep 7	Filed Appearance - Abraham Teitelbaum for purpose of Appeal			
Sep 8	Filed Pages 1921, 1921a-1921-b of the Original Transcript of Evid taken Lv given U.S. Attorney to file with Clerk of Court before Judge James H. Wilkerson, Oct 17, 1931			
	copies of pages 1921, 1921a-and 1921-b of the original transcript of the evidence taken before Judge James H. Wilkerson, Oct 17, 1931, same to be considered as the official record of the pro- ceedings of that date Sullivan, J			
Aug 12	Ordered that said petition be filed as of May 28, 1937 the date it was presented-further ordered that the prayer of said petition be and same is denied (draft) Wilkerson, J (error entered heretofore on Aug 12, 1937)			
May 28	Filed Notice -Teitelbaum and Melnick Attys			
May 28	Filed Petition - Teitelbaum and Melnick Attys			
May 28	Filed Citations of Law in Support of Petition To Vacate Sentence Under Counts No. 13 and 18 in indictment No. 23232 Teitelbaum & Melnick Attys			
Sep 11	Transcript to C.C. of A. 42 folios at 15¢ \$6.30 1060 " a4 5¢ 16.90 Notice of Appeal 5.00 Seal .50 \$22.40			
1938	Pd 9/11/37 A.Teitelbaum Atty			
Mar 19	Filed Mandate . Appeal dismissed in C.C.A.			
April 12-1	Order lv. U.S. atty. to withdraw certain files upon filing receipt for same. Woodward-J.			